

25SMCV04017 25SMCV04017

County: los-angeles

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Case Number: 25SMCV04017 Hearing Date: August 24, 2026 Dept: O

TENTATIVE RULING

August 24, 2026

25SMCV04017 (Brown v. Basmajyan,
et. al.)

RELEVANT BACKGROUND

On August 6, 2025,
plaintiff Marcus Savaunght Brown (Plaintiff) filed his complaint against Harut Basmajyan (Basmajyan); Ferit Turac; Berkan Turac; Aycan Arslan; Armanush Hunanyan; Gohar Arevyan; Souren Basmadjian; West Hills Adult Day Health Care Center LLC, and Does 1-40.

INSTANT MOTION

On February 19, 2026, Plaintiff
filed the instant motions to compel Basmajyan's
initial responses to Special Interrogatories, Set One, and \$1,110.00 in
sanctions; Form Interrogatories, Set One, and \$3,560 in monetary sanctions;
Requests for Admissions, Set One, and \$1,110; and Requests for Production, Set
One, and \$1,110.

Basmajyan filed an opposition. No reply has been filed.

DISCUSSION

Within 30 days after service

of interrogatories, the responding party shall serve a response to the propounding party. (Code Civ. Proc., § 2030.260, subd. (a).) If a party to whom interrogatories are directed fails to serve a timely response, the propounding party's remedy is to seek a court order compelling answers thereto. (Id., § 2030.290, subd. (b).) "The party to whom the interrogatories are directed shall sign the response under oath unless the response contains only objections." (Id., § 2030.250, subd. (a).)

Within 30 days after

service of a demand for inspection, copying, testing, or sampling, the party to whom the demand is directed shall serve a response on the propounding party. (Id., § 2031.260, subd. (a).) If a party to whom a demand is directed fails to serve a timely response, the propounding party's remedy is to seek a court order compelling responses to the inspection demand. (Id., § 2031.300, subd. (b).) "The party to whom the demand for inspection, copying, testing, or sampling is directed shall sign the response under oath unless the response contains only objections." (Id., § 2031.250, subd. (a).)

Within 30 days after

service of requests for admission, the party to whom the requests are directed shall serve the original of the response to them on the requesting party, and a copy of the response on all other parties who have appeared, unless on motion of the requesting party the court has shortened the time for response, or unless on motion of the responding party the court has extended the time for response. (Id., § 2033.250.) "The party to whom the requests for admissions are directed shall sign the response under oath, unless the response contains only objections." (Id., § 2033.240, subd. (a).)

Here, on October 7, 2025, Plaintiff

served Basmajyan with Special Interrogatories, Set One; Form Interrogatories, Set One; Requests for Admissions, Set One; Requests for Production, Set One. The responses were due November 10, 2025. As of the date Plaintiff filed the motions, no response had been provided to any of the discovery requests. (Oknyansky Decl. ¶ 9.)

But,

in opposition, Basmajyan

states that he served Plaintiff with verified responses to the identified discovery on August 7, 2026. (Boyadzhyan Dec., ¶ 4, Ex. A-C.)

The Court finds that Plaintiff's motions to compel are moot because Basmajyan served verified responses to the identified discovery on August 7, 2026. (Boyadzhyan Dec., ¶ 4, Ex. A-C.) But the Court finds that monetary sanctions, in a reduced amount, are appropriate because there is no substantial justification for the delay or circumstances that make the imposition of sanctions unjust. The Court finds that the amount should be reduced to \$4,000 (\$1,000 per motion) because the amount requested includes anticipated time spend on a reply that was not filed and the amount requested in connection with the form interrogatory motion is not reasonable. (See Oknyansky Dec., ¶ 12.)

Accordingly, Plaintiff's motions to compel are DENIED as MOOT.

Plaintiff's request for monetary sanctions is GRANTED, IN PART, in the reduced amount of \$4,000 total (\$1,000 per motion). Defendant shall pay such amount to Plaintiff's counsel within thirty (30) days.

Plaintiff's counsel to give notice.